

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 12

Honorable Nahal Iravani-Sani, Presiding

Courtroom Clerk, Ryan Nguyen
191 North First Street, San Jose, CA 95113
Telephone: (408) 882-2230

DATE: 08/21/2026 TIME: 9:00 A.M. and 9:01 A.M.

Welcome to Department 12. The Court's tentative rulings for the Law & Motion Calendar are below.

TO CONTEST THE RULING: Before 4:00 p.m. ON THE DAY PRIOR TO THE HEARING, YOU MUST NOTIFY:

- (1) The Court - by calling (408) 808-6856 and emailing Department12@scscourt.org
- (2) Opposing side - by phone or email that you plan to appear and contest the ruling.

The Court will not hear argument and the tentative ruling will be adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.D.)

****Please indicate the specific issue being contested when calling/emailing the Court and counsel****

IN-PERSON APPEARANCES: Department 12 is a fully open courtroom conducting in-person hearings on the days it has scheduled matters. The Court strongly encourages in-person appearances for any **contested** law-and-motion matter. If appearing remotely, **VIDEO IS REQUIRED**. Audio only appearances are not permitted absent exceptional circumstances. (Civil Local Rule 5.B.)

REMOTE APPEARANCES: Remote appearance is governed by Civil Local Rule 5 and General Local Rule 9. Department 12 uses UDC as its remote platform.

The Court encourages in-person appearance, but if appearing remotely, **VIDEO IS REQUIRED**. Audio only appearances are not allowed absent exceptional circumstances. (Civil Local Rule 5.B.)

TELEPHONIC APPEARANCE IS PROHIBITED, unless the Court grants an exception. (Civil Local Rule 5.A.) "CourtCall" is no longer available.

RECORDING IS PROHIBITED: State and local court rules prohibit recording court proceedings without a court order. This prohibition applies to both in-person and remote appearances.

COURT REPORTERS ARE NOT PROVIDED: If any party wishes to have a court reporter, the appropriate forms and process may be found on the court's website
https://www.scscourt.org/general_info/court_reporters.shtml.

SCHEDULING MOTION HEARINGS: Please reserve your next hearing date using Court Schedule—an online scheduling tool on the Santa Clara County court website.

<https://reservations.scscourt.org> or call 408-882-2430 between 8:30 a.m. and 12:30 p.m. (Mon.-Fri.) You must then file your motion papers no more than five court days after reserving the hearing date, or the date will be released to other cases.

FINAL ORDERS: The prevailing party shall prepare the order unless otherwise ordered. (See California Rule of Court 3.1312.) **Please Note:** Any proposed orders must be submitted with the Judicial Council Form EFS-020 Proposed Order (Cover Sheet). Please include the date, time, department and line number.

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<u>LINE 1</u>	23CV419732	Crown Asset Management, LLC v. Johnny Mulato	MOTION FOR ENTERING JUDGMENT & RELEASE AGREEMENT Notice is proper. The Court has received no opposition from Defendant. “[T]he failure to file an opposition creates an inference that the motion or demurrer is meritorious.” (Sexton v. Superior Court (1997) 58 Cal.App.4th 1403, 1410.) Good Cause Appearing, Plaintiff’s motion is GRANTED. Plaintiff to prepare the final order, accompanied by the necessary Forms EFS-020, within 10 days of the date of the hearing.
<u>LINE 2</u>	24CV431817	Ramin Lak v. Unitech Tool & Machine, Inc.	PETITION TO CONFIRM CONTRACTUAL ARBITRATION AWARD Notice is proper. The Court has received no opposition from Respondent. “[T]he failure to file an opposition creates an inference that the motion or demurrer is meritorious.” (Sexton v. Superior Court (1997) 58 Cal.App.4th 1403, 1410.) Good Cause Appearing, Petitioner’s motion is GRANTED. Petitioner to prepare the final order, accompanied by the necessary Forms EFS-020, within 10 days of the date of the hearing.

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DATE: 08/21/2026 TIME: 9:00 A.M. and 9:01 A.M.

LINE 3 LINE 4 LINE 5	24CV443748	Helgah V. Yeff v. James M. Barrett et al.	Defendant/Cross-Complainant moves to compel Plaintiff/Cross-Defendant to respond to discovery. Plaintiff/Cross-Defendant opposes, contending that the motion was stayed while Plaintiff/Cross-Defendant's anti-SLAPP motion was pending and is only now ripe for determination. The Court finds that the statutory discovery stay under Code of Civil Procedure section 425.16, subdivision (g), applied to the pending motions to compel and that Plaintiff/Cross-Defendant did not waive the stay by failing to oppose the motions. The motions were therefore stayed while the anti-SLAPP motion was pending. (<i>Britts v. Superior Court</i> (2006) 145 Cal.App.4th 1112, 1124–1127.) The anti-SLAPP motion was denied and notice of entry of the order was served on August 19, 2026. Accordingly, the statutory discovery stay has terminated. The parties shall meet and confer in good faith regarding each motion to compel and attempt to resolve and narrow the issues in dispute. The parties shall file a joint statement by October 2, 2026, identifying the discovery requests that remain disputed and the relief sought. The three motions to compel are CONTINUED to October 21, 2026, at 9:00 a.m. Plaintiff/Cross-Defendant shall file and serve any opposition to the remaining disputed issues by October 7, 2026, and Defendant/Cross-Complainant shall file and serve any reply by October 14, 2026.
LINE 6	25CV458972	Kenneth W. Mignosa v. FC US, LLC Putnam Automotive	DEMURRER Please Ctrl Click (or scroll down to) Line 6

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LINE 7 LINE 8 LINE 9	25CV464704	Dennis Perry v. City of Morgan Hill et al.	MOTION FOR SUMMARY JUDGMENT/ADJUDICATION Please Ctrl Click (or scroll down to) Line 7-9
LINE 10	25CV480258	Shabana Pirani v. Sweet Jane Kathleen Hammon	MOTION TO STRIKE Please Ctrl Click (or scroll down to) Line 10

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Calendar Line 6

Case Name: *Kenneth Mignosa v. FCA US, LLC et al.*

Case No.: 25CV458972

BACKGROUND

Plaintiff Kenneth Mignosa (“Plaintiff”) initiated this action against defendants FCA, US, LLC (“FCA”) and Putnam Chrysler Jeep Dodge (“Putnam”) (collectively, “Defendants”) on February 14, 2025. On December 16, 2025, Plaintiff filed the operative first amended complaint (“FAC”).

According to the allegations of the FAC, Plaintiff entered into a warranty contract with FCA regarding a 2017 Chrysler Pacifica (“Subject Vehicle”) that was manufactured and distributed by FCA. (FAC, ¶ 7; Ex. A.) The contract contained various warranties and FCA also provided Plaintiff with a California Emission Warranty that has not been produced for Plaintiff. (FAC, ¶ 8.)

Plaintiff leased the Subject Vehicle from FCA’s authorized dealer, Stevens Creek Chrysler Jeep Dodge (“the Dealership”), that conveys information to purchasers as directed by FCA. (FAC, ¶¶ 9-10.) Prior to purchase, Plaintiff reviewed FCA’s marketing and advertising materials, viewed the vehicle’s window sticker, and took the Subject Vehicle on a test drive. (FAC, ¶ 10.) Plaintiff was never told that the engine in the vehicle was defective. (*Ibid.*)

In 2018, 2020, 2022, 2023, and 2025 Plaintiff presented the Subject Vehicle to the authorized repair facility and each time was told it was repaired and working as designed. (FAC, ¶¶ 13-20.) Plaintiff had no way of uncovering the deception, he was diligent in performing regular maintenance and presenting the vehicle for repairs. (FAC, ¶¶ 21-23.) Plaintiff believes FCA knew of engine defects, including before Plaintiff acquired the Subject Vehicle, but failed to disclose the information. (FAC, ¶¶ 31-35.)

The FAC asserts the following causes of action:

- 1) Violation of Civil Code section 1793.2, subdivision (d) [against FCA];
- 2) Violation of Civil Code section 1793.2, subdivision (b) [against FCA];
- 3) Violation of Civil Code section 1793.2, subdivision (a)(3) [against FCA];
- 4) Breach of the implied warranty of merchantability [against FCA];
- 5) Negligent repair [against Putnam]; and
- 6) Fraudulent inducement/concealment [against FCA].

On February 18, 2026, FCA filed a demurrer to the FAC. Plaintiff opposes the motion.

LEGAL STANDARD

In ruling on a demurrer, the Court treats it “as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Piccinini v. Cal. Emergency Management Agency* (2014) 226 Cal.App.4th 685, 688, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318 (*Blank*).) “A demurrer tests only the legal sufficiency of the pleading. It admits the truth of all material factual allegations in the complaint; the question of plaintiff’s ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court.” (*Committee on Children’s Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 213-214.)

DISCUSSION

Statute of Limitations

“‘The defense of a statute of limitations may be asserted by general demurrer if the complaint shows on its face that the statute bars the action.’” (*E-Fab, Inc. v. Accountants, Inc. Services* (2007) 153 Cal.App.4th 1308, 1315.) “There is an important qualification, however: ‘In order for the bar of the statute of limitations to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows merely that the action may be barred.’” (*Id.* at pp. 1315-1316.) “In assessing whether plaintiff’s claims against defendant are time-barred, two basic questions drive [the] analysis: (a) What statutes of limitations govern the plaintiff’s claims? (b) When did the plaintiff’s causes of action accrue?” (*Id.* at p. 1316.)

First and Second Causes of Action

Plaintiff’s first two causes of action are brought pursuant to Civil Code section 1793.2, known as the Song-Beverly Consumer Warranty Act (“Song-Beverly”). “Song-Beverly, California’s lemon law, ‘protects consumers who purchase defective vehicles or other goods.’” (*Lathrop v. Thor Motor Coach, Inc.* (2024) 105 Cal.App.5th 808, 816; Cal. Civ. Code, § 1790 et seq.)

FCA argues that Plaintiff’s first two Song-Beverly claims are time-barred under Code of Civil Procedure sections 871.20 and 871.21 which requires that “claims sounding in breach of express warranty under Section 1793.2(b) or (d) of the Song-Beverly Act must be brought within one year after the expiration of the applicable express warranty and, under no circumstances, later than six years after the date of original delivery[.]” (Demurrer, p. 4:21-23.) FCA contends that Plaintiff’s complaint was filed on February 14, 2025 but he admits that he purchased the Subject Vehicle in 2017 and so the statute of limitations expired in May 2022. (Demurrer, p. 5:16-23.)

Code of Civil Procedure section 871.21 is a statute of repose that was enacted in 2024 through Assembly Bill No. 1755 and went into effect in 2025.

Code of Civil Procedure, Section 871.21 states:

(a) An action covered by Section 871.20 shall be commenced within one year after the expiration of the applicable express warranty.

(b) Notwithstanding subdivision (a), an action covered by Section 871.20 shall not be brought later than six years after the date of original delivery of the motor vehicle.

(Code Civ. Proc., § 871.21(a)-(b).)

The operation of section 871.21 is tied to section 871.30, subdivision (a), which was also added to the Song-Beverly Act. Section 871.30, subdivision (a) authorizes automobile manufacturers to elect to be governed by the statutes of repose for all actions that fall within section 871.20 “with respect to all of its motor vehicles sold in the year 2025 and all prior years[.]” (Code Civ. Proc., § 871.30(a).)

In this case, there are no allegations that FCA opted into the procedures above before Plaintiff filed his complaint. Thus, the FAC is not clearly and affirmatively barred by section 871.21.

As such, the demurrer to the first and second causes of action is OVERRULED.

Fourth Cause of Action

FCA additionally argues that the fourth cause of action for breach of implied warranty is time-barred under the four-year statute of limitations. (Demurrer, p. 6:19-20.)

To properly assert a breach of implied warranty claim, a plaintiff must allege a breach of warranty, occurring while the warranty is valid, and bring suit within the limitations period. (See *Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1306.) An action for damages under the Song-Beverly Act is generally governed by the four-year limitations period for breach of warranty in sales contracts set forth in Commercial Code section 2725. (See *Jensen v. BMW of North America, Inc.* (1995) 35 Cal.App.4th 112, 132; *Krieger v. Nick Alexander Imports, Inc.* (1991) 234 Cal.App.3d 205, 213-215 [noting that the statute of limitation in section 2725, specifically governing actions for breach of warranty in a sales contract, controls over the general provisions of Code of Civil Procedure section 338(a) for liabilities created by statute].)

Commercial Code section 2725, subdivision (1) states that, “[a]n action for breach of contract for sale must be commenced within four years after the cause of action has accrued.” Commercial Code section 2725, subdivision (2) further provides that “[a] cause of action accrues when the breach occurs, regardless of the aggrieved party’s lack of knowledge of the breach.” (Com. Code, § 2725, subd. (1) & (2).) “A breach of warranty occurs when tender of delivery is made, *except that where a warranty explicitly extends to future performance of the goods and discovery of the breach must await the times of such performance the cause of action accrues when the breach is or should have been discovered.*” (Com. Code, § 2725, subd. (2) [emphasis added].)

Here, the FAC contains allegations that the Subject Vehicle was leased/purchased¹ on or around May 5, 2017, more than seven years before the initial complaint was filed. (FAC, ¶¶ 7, 31.) Thus, on its face, the fourth cause of action is time-barred. In opposition, Plaintiff argues the FAC contains allegations that the Subject Vehicle was presented to FCA’s authorized repair facility on at least eight occasions between 2018 and 2025 and each time Plaintiff was told the vehicle had been repaired and was working as designed but the defects persisted. (Opposition, p. 3:8-15; FAC, ¶¶ 13-20, 53, 57-58.) The Court finds that these allegations are sufficient to show that FCA’s authorized repair facilities informed Plaintiff that the various defects had been fixed and that the vehicle was operating as designed, which is why Plaintiff did not discover the defects earlier. (*Oregel v. American Isuzu Motors, Inc.* (2001) 90 Cal.App.4th 1094, 1101; *Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1301, 1304-1305.) Whether these allegations are credible and whether a reasonable person would nonetheless have discovered the defects earlier are questions of fact not properly resolved on demurrer. (See *Alcorn v. Anbro Engineering, Inc.* (1970) 2 Cal.3d 493, 496 [court reviewing propriety of ruling on demurrer is not concerned with the “plaintiff’s ability to prove . . . allegations, or the possible difficulty in making such proof”].)

The demurrer to the fourth cause of action is **OVERRULED**.

Sixth Cause of Action

FCA next argues that the sixth cause of action for fraudulent inducement is time-barred by a three-year statute of limitations. FCA’s entire argument is that Plaintiff purchased the vehicle in May 2017, the attached warranty booklet provides a three-year limited warranty and

¹ Paragraph 7 indicates the vehicle was leased. Paragraph 31 indicates the vehicle was purchased.

five-year powertrain warranty, and the defects manifested during the applicable express warranty period. (Demurrer, p. 7:15-20.)

Pursuant to Code of Civil Procedure section 338, subdivision (d), there is a three-year statute of limitations for “[a]n action for relief on the ground of fraud or mistake.” “The cause of action in that case is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake.” (*Ibid.*)

Here, the FAC alleges that: 1) FCA knew of the defects even prior to Plaintiff’s purchase of the Subject Vehicle but failed to disclose this to Plaintiff (FAC, ¶¶ 31, 33, 35, 37, 38, 99, 100); 2) Plaintiff did not know of the defects when he purchased the vehicle and could not reasonably discover the defects before it was purchased (FAC, ¶ 37); and 3) Plaintiff discovered the defects shortly before filing the complaint because the Subject Vehicle continued to exhibit issues of defects following FCA’s attempts at repairing them (FAC, ¶¶ 53, 60-61).

As noted above, fraud claims do not accrue until the aggrieved party discovered, or should have discovered, the defect. Plaintiff alleges he discovered the defect “shortly before” the complaint was filed and could not have discovered it sooner (FAC, ¶ 53), although no specific date is alleged. Based on the FAC’s allegations, the sixth cause of action is not time-barred on its face. (See *Daley v. Regents of University of California* (2019) 39 Cal.App.5th 595, 603 [“As an exception to the general rule of accrual, however, the discovery rule ‘postpones accrual of a cause of action until the plaintiff discovers, or has reason to discover, the cause of action.’”].)

Based on the above rulings, the Court finds it unnecessary to address the remaining statute of limitations arguments.

FCA additionally argues that the sixth cause of action fails to state sufficient facts because fraud claims must be alleged with specificity. (Demurrer, p. 12:4-11.) FCA asserts that Plaintiff offers no allegations of fact regarding the nature of the defect experienced or how FCA had exclusive knowledge of the unknown defect. (*Id.* at p. 13:20-22.)

Each element in a fraud cause of action must generally be pleaded with specificity. (*Cadlo v. Owens-Illinois, Inc.* (2004) 125 Cal.App.4th 513, 519.) In the case of fraud by concealment or omission, however, courts require less particularity because “[h]ow does one show ‘how’ and ‘by what means’ something didn’t happen, or ‘when’ it never happened, or ‘where’ it never happened?” (*Alfaro v. Community Housing Improvement System & Planning Ass’n, Inc.* (2009) 171 Cal.App.4th 1356, 1384.) Less specificity is required when it appears from the nature of the allegations that the defendant necessarily possesses full information concerning the facts of the controversy. (See *Committee on Children’s Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 217 [superseded by statute on other grounds as stated in *Californians for Disability Rights v. Mervyn’s, LLC* (2006) 39 Cal.4th 223, 227].)

Here, the FAC alleges that FCA manufactures, distributes, markets, and sells motor vehicles in Santa Clara County, California. (FAC, ¶ 4.) It alleges that Plaintiff entered into a contract with FCA on May 5, 2017. (*Id.* at ¶ 7.) The FAC also alleges that FCA knew of the alleged engine defect and did not disclose it to consumers such as Plaintiff. (*Id.* at ¶¶ 31, 33, 35, 37-38, 100-101.) At least one appellate court has found similar allegations sufficient to support a cause of action for fraudulent concealment. (*Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, 843-844 (*Dhital*).) *Dhital* is persuasive here, and thus, the sixth cause of action is pleaded with adequate specificity.

Accordingly, the demurrer to the sixth cause of action on the ground it is time-barred and fails to state sufficient facts is **OVERRULED**.

Third Cause of Action

Plaintiff's third cause of action is for violation of Civil Code section 1793.2, subdivision (a)(3), which states: "Every manufacturer of consumer goods sold in this state and for which the manufacturer has made an express warranty shall: . . . Make available to authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period."

FCA argues that the third cause of action is insufficiently pled because it is "utterly silent with respect to factual allegations regarding the vehicle's service and repair history[.]" (Demurrer, p. 6:5-11.) In opposition, Plaintiff asserts the FAC contains nine paragraphs addressing defects and nonconformities in Paragraphs 12-20. (Opposition, p. 4:8-14.) Thus, as to FCA's first argument, the Court is not persuaded.

FCA next argues that there are insufficient allegations that FCA's repair facilities were unable to complete repairs because FCA failed to provide sufficient service literature and replacement parts to effect repairs. (Demurrer, p. 6:12-16.) Here, the FAC merely restates the language of the statute without factual support and is therefore insufficient pled. (See *Carter v. Prime Healthcare Paradise Valley LLC* (2011) 198 Cal.App.4th 396, 410 [where statutory remedies are invoked, "[f]acts, not conclusions, must be pleaded."].)

Accordingly, the demurrer to the third cause of action is SUSTAINED with 15 days leave to amend.

Punitive Damages

Finally, FCA seeks to strike the request for punitive damages in the FAC. This is an improper use of a demurrer, which is limited to addressing the sufficiency of causes of action. (*Grieves v. Superior Ct.* (1984) 157 Cal.App.3d 159, 163.) Consequently, a demurrer is not the proper procedural vehicle for challenging the sufficiency of punitive damages allegations. (*Ibid.*; see also *Kong v. City of Hawaiian Gardens Redevelopment Agency* (2002) 108 Cal.App.4th 1028, 1047.) The request to strike punitive damages is DENIED.

CONCLUSION

The demurrer to the first, second, fourth, and sixth causes of action is OVERRULED. The demurrer to the third cause of action is SUSTAINED with 15 days leave to amend. The request to strike punitive damages is DENIED.

The Court will prepare the final order.

Calendar Line Nos. 7-9

Case Name: *Dennis Perry v. City of Morgan Hill, et al.*

Case No.: 25-CV-464704

Motions for Summary Judgment, or in the Alternative, Summary Adjudication to the Third Amended Complaint by Defendants California Farmers Market Association, Mohi Farms, Inc., City of Morgan Hill, and Morgan Hill Property and Business Improvement District (sued as Downtown Morgan Hill Improvement District)

Factual and Procedural Background

This is an action for alleged discriminatory practices in public accommodations by plaintiff Dennis Perry (self-represented) (“Plaintiff”) against defendants California Farmers’ Markets Association (“CFMA”), Mohi Farms, Inc. (“Mohi”), City of Morgan Hill (“City”), and Morgan Hill Property and Business Improvement District (sued as Downtown Morgan Hill Improvement District) (“District”) (collectively, “Defendants”).

According to the third amended complaint (“TAC”), Plaintiff is a 78 year old combat veteran who is physically and mentally disabled with PTSD and other health issues which substantially impair his major life activities. (TAC at ¶ 1.) When Plaintiff arrived at events sponsored by Defendants in the City, he claims he was met with accessibility barriers. (Id. at ¶¶ 2, 21-23.) Defendants intentionally blocked handicapped parking spaces at their events and permitted vendors who were not disabled to use handicapped parking for a profit. (Id. at ¶¶ 2, 21-23, 40.) Defendants also failed to provide alternative temporary handicapped parking at the entrance to their events or reconfigure the events so they would not block existing handicapped spaces. (Id. at ¶ 2.) Thus, Plaintiff was denied full and equal access to the events and became physically and mentally injured when trying to negotiate accessibility barriers. (Ibid.)

In the TAC, now the operative pleading, Plaintiff alleges the following causes of action against Defendants:

- (1) Violation of the California Unruh Civil Rights Act;
- (2) Violation of Government Code § 11135;
- (3) Violations of the Disabled Persons Act; and
- (4) Negligence.

Currently before the court are separate motions for summary judgment, or in the alternative, summary adjudication brought by: (1) defendant CFMA; (2) defendant Mohi; and (3) defendants City and District (collectively, “City Defendants”). Plaintiff filed written oppositions. Defendants filed reply papers and evidentiary objections.

Trial is scheduled for September 14, 2026.

Self-Represented Litigants

Self-represented litigants “are held to the same standards as attorneys.” (*Kobayashi v. Super. Ct.* (2009) 175 Cal.App.4th 536, 543; see also *Burnete v. La Casa Dana Apartments* (2007) 148 Cal.App.4th 1262, 1270 [“self-represented litigants are generally entitled to no special

treatment’].) “[M]ere self-representation is not a ground for exceptionally lenient treatment.” (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984.) Otherwise, “exceptional treatment of parties who represent themselves would lead to a quagmire in the trial courts, and would be unfair to the other parties to litigation.” (*Id.* at p. 985.)

Motion for Summary Judgment, or in the Alternative, Summary Adjudication by Defendant CFMA (Line No. 7)

Defendant CFMA argues there is no triable issue of material fact as to the claims in the TAC and thus judgment should be entered as a matter of law. In the alternative, CFMA moves for summary adjudication of the first, third, and fourth causes of action.²

Plaintiff’s Request for Judicial Notice³

“Judicial notice is the recognition and acceptance by the court, for use by the trier of fact or by the court, of the existence of a matter of law or fact that is relevant to an issue in the action without requiring formal proof of the matter.” (*Poseidon Development, Inc. v. Woodland Lane Estates, LLC* (2007) 152 Cal.App.4th 1106, 1117.)

Here, Plaintiff requests judicial notice of Exhibits 1-9 that constitute various items of evidence in support of his oppositions. But, Plaintiff has not demonstrated that each of these items is a proper subject of judicial notice. (See Evid. Code, § 452 [matters which may be judicially noticed]; *In re Gary F.* (2014) 226 Cal.App.4th 1076, 1078, fn. 2 [“We conclude that such photographs are not subject to judicial notice under Evidence Code section 452.”]; see also *McDermott v. Palo Verde Unified Sch. Dist.* (9th Cir. 2016) 638 F. App’x 636, 638, fn. 1 [denying plaintiff’s request for judicial notice of emails between counsel because “[t]hese documents do not meet the applicable standard for judicial notice”].) Moreover, the court cannot take judicial notice of the truth of any of the public records submitted by Plaintiff. (See *Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181 Cal.App.4th 471, 482 [“While we may take judicial notice of court records and official acts of state agencies [citation], the truth of matters asserted in such documents is not subject to judicial notice.”].) That said, Plaintiff may still rely on such evidence in support of his opposition to raise a triable issue of fact, assuming the evidence is otherwise admissible and not excluded by a proper objection.

Therefore, Plaintiff’s request for judicial notice is DENIED.

CFMA’s Evidentiary Objections

² The court notes that defendant CFMA’s separate statement does not comply with California Rules of Court, rule 3.1350(b) as it fails to address the motion for summary adjudication. The court however finds there is no prejudice as this procedural defect did not impact the court’s ability to consider the motion. Moreover, Plaintiff did not appear to be adversely affected as he filed substantive opposition to the motion, including an opposing separate statement. That said, the court reminds defense counsel to file and serve papers in compliance with the rules of court.

³ The request for judicial notice applies to all three motions for summary judgment, or in the alternative, summary adjudication.

“In determining if the papers show that there is no triable issue as to any material fact, the court shall consider all of the evidence set forth in the papers, except the evidence to which objections have been made and sustained by the court...” (Code Civ. Proc., § 437c, subd. (c).)

“In granting or denying a motion for summary judgment or summary adjudication, the court need rule only on those objections to evidence that it deems material to its disposition of the motion. Objections to evidence that are not ruled on for purposes of the motion shall be preserved for appellate review.” (Code Civ. Proc., § 437c, subd. (q).)

Plaintiff's Declaration

In reply, defendant CFMA filed evidentiary objections to Plaintiff's declaration. The court makes the following rulings as to those objections:

The court SUSTAINS Objection Nos. 7, 10-11 on the ground of lack of foundation.

The court SUSTAINS Objection No. 9 on the ground of lack of personal knowledge.

The court SUSTAINS Objection No. 12 on the ground of hearsay.

The court SUSTAINS Objection Nos. 14-15 on the grounds of lack of foundation and lack of personal knowledge.

The court SUSTAINS Objection No. 16 on the ground of an improper legal conclusion.

The court declines to address the remaining objections as they are not material to the outcome of the motion for reasons stated below. (Code Civ. Proc., § 437c, subd. (q).)

Eden Perry Declaration

In reply, defendant CFMA filed evidentiary objections to the declaration of Eden Perry. The court makes the following rulings as to those objections:

The court SUSTAINS Objection Nos. 4 and 6 on the ground of lack of personal knowledge.

The court SUSTAINS Objection No. 9 on the ground of hearsay.

The court SUSTAINS Objection No. 10 on the grounds of lack of foundation and lack of personal knowledge.

The court declines to address the remaining objections as they are not material to the outcome of the motion for reasons stated below. (Code Civ. Proc., § 437c, subd. (q).)

Legal Standard

Any party may move for summary judgment. (Code Civ. Proc., § 437c, subd. (a); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843 (*Aguilar*).) “The motion for summary

judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc., § 437c, subd. (c).) “The object of the summary judgment procedure is ‘to cut through the parties’ pleadings’ to determine whether trial is necessary to resolve their dispute. [Citation.]” (*Spinks v. Equity Residential Briarwood Apartments* (2009) 171 Cal.App.4th 1004, 1020 (*Spinks*).)

“[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact...” (*Aguilar, supra*, 25 Cal.4th at p. 850.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (*Id.* at p. 851.)

A defendant moving for summary judgment may satisfy its initial burden either by producing evidence of a complete defense or by showing the plaintiff’s inability to establish a required element of the case. (*Spinks, supra*, 171 Cal.App.4th at p. 1021.)

If a moving defendant makes the necessary initial showing, the burden of production shifts to the plaintiff to make a prima facie showing of the existence of a triable issue of material fact. (Code Civ. Proc., § 437c, subd. (p)(2); see *Aguilar, supra*, 25 Cal.4th at p. 850.)

A triable issue of material fact exists “if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (*Aguilar, supra*, 25 Cal.4th at p. 850, fn. omitted.) If the plaintiff opposing summary judgment presents evidence demonstrating the existence of a disputed material fact, the motion must be denied. (*Id.* at p. 856.)

Throughout the process, the trial court “must consider all of the evidence and all of the inferences drawn therefrom.” (*Aguilar, supra*, 25 Cal.4th at p. 856.) The moving party’s evidence is strictly construed, while the opponent’s is liberally construed. (*Id.* at p. 843.)

Similarly, “[a] party may seek summary adjudication on whether a cause of action, affirmative defense, or punitive damages claim has merit or whether a defendant owed a duty to a plaintiff. [Citation.] ‘A motion for summary adjudication...shall proceed in all procedural respects as a motion for summary judgment.’ [Citation.]” (*California Bank & Trust v. Lawlor* (2013) 222 Cal.App.4th 625, 630.)

“[S]ummary judgment (or summary adjudication) is a drastic remedy and should be used with caution. [Citation.] Because summary judgment is a drastic procedure all doubts as to the propriety of granting a motion for summary judgment should be resolved in favor of the party opposing the motion. [Citations.]” (*Tully v. World Savings & Loan Assn.* (1997) 56 Cal.App.4th 654, 660; see *Kernan v. Regents of University of California* (2022) 83 Cal.App.5th 675, 684 [“The drastic remedy of summary judgment may not be granted unless reasonable minds can draw only one conclusion from the evidence.”].)

First Cause of Action: Violation of the California Unruh Civil Rights Act (Civ. Code, §§ 51-52)

The Unruh Act, codified at Civil Code section 51, prohibits business establishments from discriminating against persons based on their “sex, race, color, religion, ancestry, national origin, disability, medical condition, genetic information, marital status, sexual orientation, citizenship, primary language, or immigration status.” (Civ. Code, § 51, subd. (b).) It “was ‘enacted to prohibit discriminatory conduct by individual proprietors and private entities offering goods and services to the general public.’ ” (*Thurston v. Omni Hotels Management Corporation* (2021) 69 Cal.App.5th 299, 305.)

The Unruh Act “does not cover ‘discriminations other than those made by a “business establishment” in the course of furnishing goods, services or facilities to its clients, patrons or customers’ ” and “is ‘confined to discriminations against recipients of the “business establishment’s ... goods, services or facilities” ’ ” (*Smith v. BP Lubricants USA Inc.* (2021) 64 Cal.App.5th 138, 149.) It “creates a cause of action for any person who is denied the right to ‘full and equal accommodations, advantages, facilities, privileges, or services in all business establishments of every kind whatsoever’ based on” that person’s membership in a protected class. (*Mackey v. Board of Trustees of California State University* (2019) 31 Cal.App.5th 640, 660; Civ. Code, § 52.)

The Unruh Civil Rights Act “ ‘must be construed liberally in order to carry out its purpose’ to ‘create and preserve a nondiscriminatory environment in California business establishments by ‘banishing’ or ‘eradicating’ arbitrary, invidious discrimination by such establishments. [Citation.] The Unruh Civil Rights Act ‘serves as a preventive measure, without which it is recognized that businesses might fall into discriminatory practices.’ ” (*Munson v. Del Taco, Inc.* (2009) 46 Cal.4th 661,666.)

“A plaintiff can recover under the Unruh Civil Rights Act on two alternate theories: (1) a violation of the ADA (Civ. Code, § (f)); or (2) denial of access to a business establishment based on intentional discrimination.” (*Martinez v. San Diego County Credit Union* (2020) 50 Cal.App.5th 1048, 1059.)

To establish a claim under the Unruh Act, a plaintiff must prove the following factual elements:

- That defendant denied full and equal accommodations, advantages, facilities, privileges, or services to plaintiff;
- That a substantial motivating reason for defendant’s conduct was his/her perception of plaintiff’s protected category or categories, such as religion, race, national origin, ancestry;
- That the protected category or categories of a person whom plaintiff was associated with was a substantial motivating reason for defendant’s conduct;
- That plaintiff was harmed; and
- That defendant’s conduct was a substantial factor in causing plaintiff’s harm. (CACI 3060.)

On summary judgment, “the pleadings frame the issues to be resolved. ‘ “The purpose of a summary judgment [adjudication] proceeding is to permit a party to show that material factual claims arising from the pleadings need not be tried because they are not in dispute.” [Citation.] “The function of the pleadings in a motion for summary judgment [adjudication] is to delimit the scope of the issues: the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings.” [Citations.]’ [Citations.]” (*Snatchko v. Westfield LLC* (2010) 187 Cal.App.4th 469, 477.)

In his TAC, Plaintiff alleges he went to the Farmers Market held in the City owned Depot St. parking lot each Saturday. (TAC at ¶ 13.) The Depot St. parking lot contained two handicapped spaces that were used by non-handicapped vendors. (Ibid.) Plaintiff alleges defendant CFMA failed to “unblock” the two spaces or provide temporary handicapped parking which resulted in denying Plaintiff access to parking at the event. (Ibid.)

On summary judgment, defendant CFMA argues, in part, that it cannot be held liable for any accessibility condition since it was the City’s responsibility to provide adequate handicapped spots. In support, CFMA directs the court to the following material facts in its separate statement which provide:

- Plaintiff admits the City “retained control over the public streets, parking spaces, parking lots, sidewalks, and rights-of-way adjacent to each event, including the authority to enforce parking regulations, designate temporary accessible parking, and ensure ADA compliance.”
- Plaintiff acknowledged that it is “the City’s responsibility to provide adequate handicapped spots.” (See CFMA’s Sep. Stmt. of Undisputed Facts [“SSUF”] at Nos. 5-6.)

In opposition, Plaintiff does not dispute the City’s authority over adjacent parking areas or to provide adequate accessible handicapped parking. Rather, Plaintiff contends defendant CFMA has a separate event-level duty and responsibility for “accessibility conditions within the permitted market footprint.” (See Plaintiff’s Disputed Facts at Nos. 5-6; Plaintiff’s Additional Facts at Nos. 3-6, 13-15.) But, as pointed out in reply, this separate event-level duty is a new legal theory which is not supported by allegations in the operative pleading. (See *Whelihan v. Espinoza* (2003) 110 Cal.App.4th 1566, 1576 [“a party cannot successfully resist summary judgment on a theory not pleaded”]; see also *Laabs v. City of Victorville* (2008) 163 Cal.App.4th 1242, 1258, fn. 7 [“To allow an issue that has not been pled to be raised in opposition to a motion for summary judgment in the absence of an amended pleading, allows nothing more than a moving target.”].) Nor does the opposition contain admissible evidence demonstrating that CFMA possessed such authority.

Thus, the court finds there is no viable claim under the Unruh Civil Rights Act. Having done so, the court declines to address the remaining arguments in the moving papers.⁴

⁴ In reply, defendant CFMA argues the Unruh Act claim fails for lack of evidence of intentional discrimination or a statutory violation attributable to CFMA. The court declines to consider this argument as it is being raised for the first time in the reply papers. (See *Tyler v. Children’s*

Third Cause of Action: Violation of the Disabled Persons Act (Civ. Code, §§ 54-54.3)

Whereas the Unruh Civil Rights Act bars discrimination against several classes of individuals, the Disabled Persons Act (“DPA”) more narrowly protects those who suffer from disabilities. (*Turner v. Association of America Medical Colleges* (2008) 167 Cal.App.4th 1401, 1411 (*Turner*).)

“Under the DPA, ‘Individuals with disabilities or medical conditions have the same right as the general public to the full and free use of the streets, highways, sidewalks, walkways, public buildings, medical facilities, including hospitals, clinics, and physicians’ offices, public facilities, and other public places.’ [Citation.]” (*Turner, supra*, 167 Cal.App.4th at p. 1411.)

“The DPA is ‘intended to secure to disabled persons the “same right as the general public to the full and free use” of facilities open to the public.’ [Citation.] Its focus is upon *physical* access to public places, though the statute may also be construed as requiring equal physical access to a nontangible location such as an Internet site. [Citations.] Although the DPA now protects persons with mental disabilities, the published cases have involved challenges of physically disabled individuals denied access to some public site or service due to their disability. [Citations.]” (*Turner, supra*, 167 Cal.App.4th at p. 1412; see *Hankins v. El Torito Restaurants, Inc.* (1998) 63 Cal.App.4th 510, 515 [patron on crutches denied permission to use the only bathroom on first floor, which was reserved for employees]; see also *Donald v. Sacramento Valley Bank* (1989) 209 Cal.App.3d 1183, 1186-1187 [quadriplegic could not access bank’s automatic teller machine from wheelchair due to the steps in front of it].)

Moreover, Civil Code section 54.3 imposes a standing requirement that the plaintiff have suffered an actual denial of equal access before any suit for damages can be brought. A plaintiff cannot recover damages under section 54.3 unless the violation actually denied him or her access to some public facility. (*Reycraft v. Lee* (2009) 177 Cal.App.4th 1211, 1223 (*Reycraft*).) Standing under the DPA requires something more than mere awareness of or a reasonable belief about the existence of a discriminatory condition. (*Id.* at p. 1221.)

In the third cause of action, Plaintiff alleges he was denied access to Defendants’ services when he attended events at the Farmers Market as defendant CFMA blocked two handicapped spaces. (TAC at ¶ 48.) This claim fails for the same reasons stated above in connection with the first cause of action. (See CFMA’s SSUF at Nos. 5-6.) Furthermore, CFMA submits undisputed evidence showing that Plaintiff was not personally turned away from events hosted by CFMA. (*Id.* at Fact No. 7.) Again, without evidence denying Plaintiff *physical access* to a public place, there can be no liability under the DPA. Such is the case here and thus the court concludes there is no viable claim under the DPA to overcome the instant motion for summary judgment and summary adjudication.

Fourth Cause of Action: Negligence

Home Society (1994) 29 Cal.App.4th 511, 526, fn. 8 [“it is unfair to raise new arguments for the first time in a reply brief; we therefore need not consider the contention”].)

“To prevail in a negligence action, a plaintiff must establish the defendant owed a legal duty, the defendant breached that duty, and the breach proximately caused the plaintiff’s damages.” (*Archer v. Coinbase, Inc.* (2020) 53 Cal.App.5th 266, 278 (*Archer*).)

“The threshold element of a cause of action for negligence is the existence of a duty to use due care toward an interest of another that enjoys legal protection against unintentional invasion.” (*Bily v. Arthur Young & Co.* (1992) 3 Cal.4th 370, 397.)

“ ‘Absent a legal duty, any injury is an injury without actionable wrong. [Citation.] ‘Duty, being a question of law, is particularly amenable to resolution by summary judgment.’ ” [Citation.]” (*Archer, supra*, 53 Cal.App.5th at p. 278.)

“A defendant’s control over property is sufficient to create a duty to protect owed to persons using the property. [Citations.] Conversely, absent any control of the property, a defendant cannot be held liable for a dangerous condition on that property. [Citations.]” (*Colonial Van & Storage, Inc. v. Super. Ct.* (2022) 76 Cal.App.5th 487, 497.)

In the fourth cause of action, Plaintiff alleges Defendants had a duty to operate the public events in a reasonably safe manner, including a duty not to block designated accessible parking spaces. (TAC at ¶ 50.) Defendants breached that duty by physically blocking one or more designated accessible parking spaces. (Id. at ¶ 50.)

Here, there is no duty to support negligence as defendant CFMA submits evidence showing it did not have control, ownership, or authority to maintain the handicapped parking spaces. (See CFMA’s SSUF at Nos. 2-6.) As stated above, that responsibility belongs to the City. Absent a duty, there is no viable claim for negligence and thus summary judgment is warranted.⁵

Accordingly, the motion for summary judgment to the TAC by defendant CFMA is GRANTED.

Motion for Summary Judgment, or in the Alternative, Summary Adjudication by Defendant Mohi (Line No. 8)

Defendant Mohi argues there is no triable issue of material fact as to the claims in the TAC and thus judgment should be entered as a matter of law. In the alternative, Mohi moves for summary adjudication of the first, third, and fourth causes of action.⁶

Mohi’s Request for Judicial Notice

The request for judicial notice of Plaintiff’s TAC (Ex. 1) is DENIED as the court must necessarily consider allegations of the challenged pleading in addressing a motion for summary judgment or summary adjudication. (See *AARTS Productions, Inc. v. Crocker National Bank*

⁵ Having disposed of the negligence claim on the issue of duty, the court declines to consider the alternative argument based on causation.

⁶ In opposition, Plaintiff argues the notice of motion is defective as it fails to comply with California Rules of Court, rule 3.1350(b). The court is not persuaded and finds the notice of motion sufficiently satisfies the rules of court.

(1986) 179 Cal.App.3d 1061, 1064 [on a motion for summary judgment, the court first identifies the issues framed by the pleadings since it is these allegations to which the motion must respond by establishing a complete defense or otherwise showing there is no factual basis for relief on any theory reasonably contemplated by the opponent's pleading].)

The request for judicial notice of this court's order on demurrer to the second amended complaint (Ex. 2) and Declaration of Chris Ghione in support of the City Defendants' motion for summary judgment and summary adjudication (Ex. 3) is DENIED as these exhibits are not relevant to resolving issues raised by the motion for reasons articulated below. (See *Gbur v. Cohen* (1979) 93 Cal.App.3d 296, 301 [information subject to judicial notice must be relevant to the issue at hand]; see also *Jordache Enterprises, Inc. v. Brobeck, Phleger & Harrison* (1998) 18 Cal.4th 739, 748, fn. 6 [a court need not take judicial notice of a matter unless it "is necessary, helpful, or relevant"].)

Mohi's Evidentiary Objections

In reply, defendant Mohi filed objections to evidence incorporated in Plaintiff's opposition. The court makes the following rulings as to those objections:

The court SUSTAINS Objection Nos. 2-4 on the grounds of lack of personal knowledge and speculation.

The court SUSTAINS Objection No. 7 on the grounds of hearsay, lack of foundation, and lack of personal knowledge.

The court SUSTAINS Objection Nos. 9-10 on the ground of lack of foundation.

The court declines to address the remaining objections as they are not material to the outcome of the motion for reasons explained below. (Code Civ. Proc., § 437c, subd. (q).)

First Cause of Action: Violation of the California Unruh Civil Rights Act (Civ. Code, §§ 51-52)

In order to establish a case under the Unruh Act, a plaintiff must plead and prove intentional discrimination in public accommodations in violation of the terms of the Act. (*Hankins v. El Torito Rests.* (1998) 63 Cal.App.4th 510, 517-518.)

In the first cause of action, Plaintiff alleges defendant Mohi intentionally discriminated against him by denying him full and equal accommodations, advantages, facilities, privileges and services because of his disabilities and medical conditions. (TAC at ¶ 40.)

On summary judgment, defendant Mohi argues there is no evidence to suggest that Mohi intentionally discriminated against Plaintiff on the basis of his disability. (See Mohi's SSUF at Nos. 30-36.) In opposition, Plaintiff contends there is evidence supporting intentional discrimination under the Unruh Act. (See Plaintiff's Disputed Facts at Nos. 30-36; Plaintiff's Additional Facts at Nos. 1-2, 5-8, 9-17.) Plaintiff's evidence however does not establish that Mohi engaged in intentional discrimination on the basis of his disability and thus fails to raise a triable issue of material fact.

Therefore, the court concludes there is no viable claim under the Unruh Civil Rights Act. Having disposed of the first cause of action on this ground, the court declines to consider defendant Mohi's remaining arguments on summary judgment.

Third Cause of Action: Violation of the Disabled Persons Act (Civ. Code, §§ 54-54.3)

"[S]tanding under section 54.3 of the DPA is established where a disabled plaintiff can show he or she actually presented himself or herself to a business or public place with the intent of purchasing its products or utilizing its services in the manner in which those products and/or services are typically offered to the public and was actually denied equal access on a particular occasion." (*Reycraft, supra*, 177 Cal.App.4th at p. 1224.)

In the third cause of action, Plaintiff alleges defendant Mohi denied him full and equal access to its services when he attended events. (TAC at ¶ 48.)

On summary judgment, defendant Mohi asserts that Plaintiff lacks standing under the DPA as Mohi did not deny him physical access to any Mohi event or service. (See Mohi's SSUF at Nos. 39-40.) The evidence here establishes that Plaintiff: (1) had no ticket and no intention of attending any Mohi event; and (2) Plaintiff could not identify Mohi as the party responsible for placing obstructions on or near the designated accessible parking spaces at issue in the case. (*Ibid.*) With this evidence, Mohi meets its initial burden as a trier of fact may find that Mohi did not physically deny access to Plaintiff as to any Mohi event or service.

In opposition, Plaintiff's supporting memorandum does not substantively address the standing argument. (See OPP at pp. 13:20-14:14.) Plaintiff however does direct the court to the following evidence incorporated in: (1) Plaintiff's Disputed Facts at Nos. 39-40; and (2) Plaintiff's Additional Facts at Nos. 1, 5-13, and 16-17. The court has reviewed these disputed and additional facts and finds that such evidence does not raise a triable issue of material fact to defeat the motion as to the third cause of action.

Thus, the court concludes there is no viable claim under the DPA.

Fourth Cause of Action: Negligence

In the fourth cause of action, Plaintiff alleges Defendants had a duty to operate the public events in a reasonably safe manner, including a duty not to block designated accessible parking spaces. (TAC at ¶ 50.) Defendants breached that duty by physically blocking one or more designated accessible parking spaces. (*Id.* at ¶ 50.)

On summary judgment, defendant Mohi proffers evidence showing there is no duty or breach of duty to support negligence as defendant Mohi was not responsible for obstructing the designated parking spaces. (See Mohi's SSUF at Nos. 6-7, 40; Morales Decl. at ¶¶ 2-4.)

In opposition, Plaintiff argues the negligence claim is disputed as defendant Mohi controlled, directed, coordinated and participated in the events and setup for the subject events. (See Plaintiff's Disputed Facts at Nos. 6-7, 40; Plaintiff's Additional Facts at Nos. 1, 5-17.) The court has reviewed these disputed and additional facts and concludes they do not raise a triable

issue of material fact to overcome the motion with respect to the fourth cause of action. Thus, there is no viable claim for negligence.⁷

Accordingly, the motion for summary judgment to the TAC by defendant Mohi is GRANTED.

Motion for Summary Judgment, or in the Alternative, Summary Adjudication by the City Defendants (Line No. 9)

The City Defendants argue there is no triable issue of material fact as to the claims in the TAC and thus judgment should be entered as a matter of law. In the alternative, the City Defendants move for summary adjudication of the first, second, and third causes of action.⁸

City Defendants' Evidentiary Objections

Plaintiff's Declaration

In reply, the City Defendants filed evidentiary objections to Plaintiff's declaration. The court makes the following rulings as to those objections:

The court SUSTAINS Objection Nos. 7-8, 13, 29, and 33 on the grounds of lack of foundation and speculation.

The court SUSTAINS Objection Nos. 9-10, 19, 22 and 32 on the grounds of lack of foundation, speculation, and lack of personal knowledge.

The court SUSTAINS Objection No. 24 on the ground of hearsay.

The court SUSTAINS Objection No. 28 on the grounds of lack of foundation, speculation, and improper opinion.

The court declines to address the remaining objections as they are not material to the outcome of the motion for reasons articulated below. (Code Civ. Proc., § 437c, subd. (q).)

Eden Perry Declaration

In reply, the City Defendants filed evidentiary objections to the declaration of Eden Perry. The court makes the following rulings as to those objections:

The court SUSTAINS Objection Nos. 2-3, 5-6, 10-11, and 18 on the grounds of lack of foundation and speculation.

The court SUSTAINS Objection Nos. 28-29 on the ground of lack of personal knowledge.

⁷ Having disposed of the negligence claim on the issues of duty and breach of duty, the court declines to consider the remaining argument based on causation.

⁸ In opposition, Plaintiff argues the notice of motion is defective as it fails to comply with California Rules of Court, rule 3.1350(b). The court disagrees and concludes the notice of motion adequately satisfies the rules of court.

The court declines to address the remaining objections as they are not material to the outcome of the motion for reasons explained below. (Code Civ. Proc., § 437c, subd. (q).)

First Cause of Action: Violation of the California Unruh Civil Rights Act (Civ. Code, §§ 51-52)

On summary judgment, the City Defendants argue the Unruh Civil Rights claim fails, as a matter of law, as neither entity constitutes a “business establishment” as that term is defined under the statute.

“The Unruh Civil Rights Act allows recovery of damages for discrimination ‘ “by a ‘business establishment’ in the course of furnishing goods, service or facilities to its clients, patrons, or customers.” ’ [Citation.] ... An organization has sufficient businesslike attributes to qualify as a business establishment when it ‘appears to have been operating in a capacity that is the functional equivalent of a commercial enterprise.’ [Citation.]” (*Carter v. City of Los Angeles* (2014) 224 Cal.App.4th 808, 825 (*Carter*).)

California courts have generally determined that cities and counties do not constitute “business establishments” for purposes of the Unruh Act. (See *Harrison v. City of Rancho Mirage* (2015) 243 Cal.App.4th 162, 173 [holding the city was not acting as “business establishment” within the meaning of the Unruh Act when it amended existing municipal code]; *Carter, supra*, 224 Cal.App.4th at p. 825 [“We think a public entity providing sidewalks and curbs to its citizens does so as a public servant, not a commercial enterprise.”]; *Brennon B. v. Super. Ct.* (2022) 13 Cal.5th 662, 684 [for the Unruh Act to apply, the entity at issue must resemble an ordinary for-profit business]; see also *Romstad v. Contra Costa Cty.* (9th Cir. 2003) 41 Fed. App’x 43, 45 [affirming the decision holding the county social services department did not qualify as a business establishment].)

In support, the City Defendants rely on the following material facts in their separate statement to establish that they are not a “business establishment” under the Unruh Civil Rights Act:

- The City is a governmental entity who was performing a quintessential governmental function in regulating the streets.
- The City Council of Morgan Hill, an elected legislative body, formally authorized the creation of the District and adopted the Management District Plan.
- The District provides public services including street cleaning, safety patrols, capital improvements, events and marketing.
- The District only operates in a geographically delimited area defined by City ordinance.
- The District is a governmental instrumentality, created by the City pursuant to statute, funded by mandatory public assessments, and charged with performing public functions within a defined municipal boundary.

- The District is funded by assessments levied on the property owners within the District's geographical boundaries. (See City Defendants' SSUF at Nos. 1-6; see also *Carter, supra*, 224 Cal.App.4th at p. 825 [no California court would likely consider a municipal entity to be liable under the Unruh Civil Rights Act].)

In opposition, Plaintiff contends there are disputed issues as to whether the City Defendants operated as a commercial enterprise. (See Plaintiff's Disputed Facts at Nos. 1-6; Plaintiff's Additional Facts at Nos. 4-14, 17-18.) The court disagrees and concludes that Plaintiff fails to raise a triable issue of material fact. Specifically, Plaintiff does not submit admissible evidence demonstrating that the City Defendants engaged in any commercial enterprise to support liability under the Unruh Civil Rights Act and thus the first cause of action fails as a matter of law.

Second Cause of Action: Violation of California Government Code § 11135

The second cause of action is a claim for violation of California Government Code section 11135 against the City. That section provides in pertinent part:

“No person in the State of California shall, on the basis of sex, race, color, religion, ancestry, national origin, ethnic group identification, age, mental disability, physical disability, medical condition, genetic information, marital status, or sexual orientation, be unlawfully denied full and equal access to the benefits of, or be unlawfully subjected to discrimination under, any program or activity that is conducted, operated, or administered by the state or by any state agency, is funded directly by the state, or receives any financial assistance from the state.” (Gov. Code, § 11135, subd. (a).)

In the second cause of action, Plaintiff alleges the City receives state financial assistance and operates programs and activities that are subject to section 11135. (TAC at ¶ 43.) Plaintiff alleges that designated accessible parking spaces in City controlled public streets and City owned parking lots were blocked or unavailable, and no temporary accessible parking was provided. (Ibid.)

On summary judgment, the City contends there is no viable claim under section 11135 as: (1) the City's street and parking stall maintenance is funded solely by local revenue bonds, general fund money, or local assessment district funds; and (2) the City provided alternative accessible parking within close vicinity to the market. (See City Defendants' SSUF at Nos. 8-9.)

In opposition, Plaintiff asserts a triable issue of fact exists as the City's budget includes state funding for streets, roads, and access improvements. (See Plaintiff's Additional Fact at No. 15.) This broad assertion however is not supported by the evidence cited in opposition. Plaintiff also directs the court to his additional facts at numbers 4-14 but this evidence also fails to raise any triable issue of material fact to defeat the motion.

Accordingly, there is no viable claim for a violation under Government Code section 11135.

Third Cause of Action: Violation of the Disabled Persons Act (Civ. Code, §§ 54-54.3)

In the third cause of action, Plaintiff alleges the City Defendants, like the other defendants, denied him full and equal access to their services when he attended events. (TAC at ¶ 48.) Again, this denial is in the form of blocking and obstructing handicapped parking spots. (Ibid.)

On summary judgment, the City Defendants argue Plaintiff was not denied access to City accommodations as the City provided alternative accessible parking within close vicinity of the market. (See City Defendants' SSUF at No. 10.) Since alternative parking was available, the City Defendants assert there is no violation under the DPA.

In support, the City Defendants rely on *Urhausen v. Longs Drug Stores Cal., Inc.* (2007) 155 Cal.App.4th 254 (*Urhausen*) which the court finds instructive. There, a disabled plaintiff visited a drug store and chose to park in an ordinary parking space instead of an unoccupied parking space for use by disabled persons. (*Urhausen, supra*, 155 Cal.App.4th at p. 257.) As the plaintiff walked from her parking space to the store, she did not use the disabled access aisle and curb, but instead chose to walk across a non-access aisle where she encountered a non-compliant curb. (*Id.* at pp. 258-260.) Ultimately, the curb was too steep, causing the plaintiff to fall and fracture her wrist. (*Ibid.*) The First Appellate District held that the plaintiff did not establish statutory standing for her damages claim because the drug store provided an alternate means of access by way of a disability access aisle. (*Id.* at p. 262.) Because that alternate means of access was available, the drug store did not actually deny access. (*Id.* at pp. 263-265.) The Court of Appeal explained it this way:

“While we recognize that the failure of the parking space to comply with slope requirements was the cause of plaintiff’s injury, and therefore a cause of her failure to reach the entrance of the drugstore, we do not believe that this is sufficient to demonstrate that plaintiff was denied equal access to the store. The phrase ‘denied equal access’ necessarily implies that either the structure of the public facility, or some policy of its operator, precluded equal access. It is undisputed, however, that Longs provided access to its entrance by way of an aisle, curb cut, and ramp installed for the particular use of the disabled. Because this means of access was at all times available for plaintiff’s use, she cannot demonstrate that she was denied equal access to the store without demonstrating that this route, too, was inadequate.” (*Id.* at p. 263.)

The appellate court reasoned that “equat[ing] a denial of equal access with the presence of a violation of federal or state regulations would ... eliminate any distinction between a cause of action for equitable relief under section 55 and a cause of action for damages under section 54.3.” (*Urhausen, supra*, 155 Cal.App.4th at p. 266.)

In opposition, Plaintiff fails to distinguish *Urhausen*. Instead, Plaintiff contends he had to use farther alternative lots for parking despite his health-related issues. (See Plaintiff’s Disputed Fact at No. 10; Plaintiff’s Additional Facts at Nos. 5-9, 12-13.) But, this contention is not compelling as the inconvenience attributed to Plaintiff with respect to parking in another lot cannot be equated with a denial of access. *Urhausen* suggests that a denial of access could be shown if the alternative route was inadequate. (*Urhausen, supra*, 155 Cal.App.4th at p. 263.) Plaintiff fails to make that showing here and thus fails to raise a triable issue of material fact to defeat the motion as to the third cause of action.

Fourth Cause of Action: Negligence

In the fourth cause of action, Plaintiff alleges the City Defendants had a duty to operate the public events in a reasonably safe manner, including a duty not to block designated accessible parking spaces. (TAC at ¶ 50.) The City Defendants breached that duty by physically blocking one or more designated accessible parking spaces. (Id. at ¶ 50.)

“Public entities in California are not liable for tortious injury unless liability is imposed by statute. [Citation.] ‘[S]overeign immunity is the rule in California; governmental liability is limited to exceptions specifically set forth by statute.’ [Citations.]” (*San Mateo Union High School Dist. v. County of San Mateo* (2013) 213 Cal.App.4th 418, 427 (*San Mateo Union*); Gov’t Code, § 815, subd. (a) [“A public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person.”].)

“This means that the ‘liability of public entities must be based on specific statute declaring them to be liable, or at least creating some specific duty of care’ to the plaintiff. [Citations.] ‘The law’s clear purpose was “not to expand the rights of plaintiffs in suits against governmental entities, but to confine potential governmental liability to rigidly delineated circumstances.”’ [Citation.] [Citation.]” (*San Mateo Union, supra*, 213 Cal.App.4th at p. 428.)

On summary judgment, the City Defendants argue there is no statutory basis alleged in the operative pleading to hold them liable for negligence as they constitute public entities. (See City Defendants’ SSUF at Nos. 14-16.) Absent a statute, there is no viable claim for negligence against the City Defendants.

In opposition, Plaintiff attempts to hold the City Defendants liable for negligence under Government Code section 835 for an injury caused by a dangerous condition of public property or Government Code section 815.6 addressing the mandatory duty of a public entity. (See OPP at p. 18:2-17.) But, as pointed out in the reply papers, the court cannot consider these sections as they have not been pled in the TAC. (Reply at p. 8:12-24.) “A ‘plaintiff cannot bring up new, unpleaded issues in his or her opposing papers. [Citation.] [Citation.] A plaintiff wishing ‘to rely upon unpleaded theories to defeat summary judgment’ must move to amend the complaint before the hearing. [Citations.]” (*Knapp v. Doherty* (2004) 123 Cal.App.4th 76, 90.) No such motion to amend is before the court and this court cannot rely on an unpleaded theory to defeat the instant motion for summary judgment. (See *Hutton v. Fidelity National Title Co.* (2013) 213 Cal.App.4th 486, 493 [“[T]he burden of a defendant moving for summary judgment only requires that he or she negate plaintiff’s theories of liability *as alleged in the complaint*; that is, a moving party need not refute liability on some theoretical possibility not included in the pleadings.”]; see also *Millard v. Biosources, Inc.* (2007) 156 Cal.App.4th 1338, 1353 [plaintiff whose complaint alleged negligence but not a theory of negligence per se and who did not seek to amend complaint to include such allegations cannot defeat summary judgment by raising a theory of negligence per se].)

Consequently, the motion for summary judgment is GRANTED.⁹

⁹ Having disposed of the negligence claim based on Plaintiff’s failure to allege a statutory basis for liability, the court declines to consider the remaining arguments based on government immunity and causation.

Request for Fees and Costs

The request for fees and costs by the City Defendants under Code of Civil Procedure section 1038 is DENIED WITHOUT PREJUDICE subject to the filing and service of a noticed motion. (See *Gamble v. Los Angeles Dept. of Water & Power* (2002) 97 Cal.App.4th 253, 257 [“section 1038 requires a noticed motion”]; see also *Kobzoff v. Los Angeles County Harbor/UCLA Medical Center* (1998) 19 Cal.4th 851, 862 [“[B]efore denying a section 1038 motion, a court must find the plaintiff brought or maintained an action in the good faith belief in the action’s justifiability and with objective reasonable cause.”].)

Disposition

The motions for summary judgment to the TAC are GRANTED.

The request for fees and costs by the City Defendants under Code of Civil Procedure section 1038 is DENIED WITHOUT PREJUDICE subject to the filing and service of a noticed motion.

The court will prepare the order.

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Calendar line 10

Case Name: *Shabana Pirani v. S.J.K. Hammon*

Case No.: 25-CV-480258

Special Motion to Strike the Complaint by Defendant Sweet Jane Kathleen Hammon
(erroneously sued and served herein as S.J. Hammon)

Factual and Procedural Background

On December 9, 2025, plaintiff Shabana Pirani (“Plaintiff”) (self-represented) filed a judicial council form complaint against defendant Sweet Jane Kathleen Hammon (erroneously sued and served herein as S.J. Hammon) (“Defendant”) alleging causes of action for general negligence, professional negligence, and intentional tort.

On June 9, 2026, Defendant filed a motion seeking discretionary relief under Code of Civil Procedure section 473, subdivision (b) for the late-filing of her special motion to strike the complaint. On July 21, 2026, this court posted a tentative ruling granting such relief and denying Plaintiff’s request for entry of default. On July 22, 2026, the motion came on for hearing with an appearance by defense counsel. There was no appearance by the Plaintiff and no contest to the tentative ruling. Therefore, the tentative ruling became the final order of the court.

Currently before the court is Defendant’s special motion to strike the complaint. Plaintiff filed written opposition on July 27, 2026.

A case status review is scheduled for December 4, 2026.

Self-Represented Litigants

Self-represented litigants “are held to the same standards as attorneys.” (*Kobayashi v. Super. Ct.* (2009) 175 Cal.App.4th 536, 543; see also *Burnete v. La Casa Dana Apartments* (2007) 148 Cal.App.4th 1262, 1270 [“self-represented litigants are generally entitled to no special treatment”].) “[M]ere self-representation is not a ground for exceptionally lenient treatment.” (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984.) Otherwise, “exceptional treatment of parties who represent themselves would lead to a quagmire in the trial courts, and would be unfair to the other parties to litigation.” (*Id.* at p. 985.)

Special Motion to Strike the Complaint

Defendant moves to strike each cause of action in the complaint on the ground that the pleading arises from protected activity and Plaintiff will be unable to demonstrate a probability of success on the merits.

Legal Standard

Code of Civil Procedure section 425.16 provides for a “special motion to strike” when a plaintiff’s claims arise from certain acts constituting the exercise of the constitutional rights of freedom of speech and petition for the redress of grievances, “unless the court determines that

the plaintiff has established that there is a probability that the plaintiff will prevail on the claim.” (Code Civ. Proc., § 425.16, subds. (a) & (b)(1).)

“Consistent with the statutory scheme, ruling on an anti-SLAPP motion involves a two-step procedure. First, the moving defendant must identify ‘all allegations of protected activity’ and show that the challenged claim arises from that activity. [Citations.] Second, if the defendant makes such a showing, the ‘burden shifts to the plaintiff to demonstrate that each challenged claim based on protected activity is legally sufficient and factually substantiated.’ [Citation.] Without resolving evidentiary conflicts, the court determines ‘whether the plaintiff’s showing, if accepted by the trier of fact, would be sufficient to sustain a favorable judgment.’ [Citation.]” (*Bel Air Internet, LLC v. Morales* (2018) 20 Cal.App.5th 924, 934 (*Bel Air Internet*).)

First Prong: Protected Activity

Law

“A defendant meets his or her burden on the first step of the anti-SLAPP analysis by demonstrating the acts underlying the plaintiff’s cause of action fall within one of the four categories spelled out in [Code of Civil Procedure] section 425.16, subdivision (e).” (*Collier v. Harris* (2015) 240 Cal.App.4th 41, 50-51 (*Collier*).) That section provides that an “act in furtherance of a person’s right of petition or free speech under the United States or California Constitution in connection with a public issue includes: (1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.” (Code Civ. Proc., § 425.16, subd. (e).) “These categories define the scope of the anti-SLAPP statute by listing acts which constitute an ‘act in furtherance of a person’s right of petition or free speech under the United States or California Constitution in connection with a public issue.’ ” (*Collier, supra*, 240 Cal.App.4th at p. 51, citing Code Civ. Proc., § 425.16, subd. (e).)

“A claim arises from protected activity when that activity underlies or forms the basis for the claim. [Citations.] Critically, ‘the defendant’s act underlying the plaintiff’s cause of action must itself have been an act in furtherance of the right of petition or free speech.’ [Citations.] ‘[T]he mere fact that an action was filed after protected activity took place does not mean the action arose from that activity for the purposes of the anti-SLAPP statute.’ [Citations.] Instead, the focus is on determining what ‘the defendant’s activity [is] that gives rise to his or her asserted liability—and whether that activity constitutes protected speech or petitioning.’ [Citation.]” (*Park v. Board of Trustees of California State University* (2017) 2 Cal.5th 1057, 1062-1063 (*Park*).)

“[A] claim may be struck only if the speech or petitioning activity itself is the wrong complained of, and not just evidence of liability or a step leading to some different act for which liability is asserted.” (*Park, supra*, 2 Cal.5th at p. 1060.) To determine whether the

speech constitutes the wrong itself or is merely evidence of a wrong, “in ruling on an anti-SLAPP motion, courts should consider the elements of the challenged claim and what actions by defendant supply those elements and consequently form the basis for liability.” (*Id.* at p. 1063.)

“In deciding whether the ‘arising from’ requirement is met, a court considers ‘the pleadings, and supporting and opposing affidavits stating the facts upon which the liability or defense is based.’ ” (*Peregrine Funding, Inc. v. Sheppard Mullin Richter & Hampton LLP* (2005) 133 Cal.App.4th 658, 670.)

Analysis

In the first step of the anti-SLAPP analysis, Defendant relies on section 425.16, subdivision (e)(1) and (2) for statements made before or in connection with a judicial proceeding.

“ ‘[A]ny act’ [citation] ‘includes communicative conduct such as the filing, funding, and prosecution of a civil action. [Citation.] This includes qualifying acts committed by attorneys in representing clients in litigation. [Citations.]’ [Citation.] ‘Under the plain language of section 425.16, subdivision (e)(1) and (2), as well as the case law interpreting those provisions, all communicative acts performed by attorneys as part of their representation of a client in a judicial proceeding or other petitioning context are per se protected as petitioning activity by the anti-SLAPP statute. ...’ [Citation.]” (*Finton Construction, Inc. Bidna & Keys, APLC* (2015) 238 Cal.App.4th 200, 210.)

“However, protection is not accorded to statements ‘having any connection, however remote, with an official proceeding.’ [Citation.] Rather, ‘[t]he statements or writings in question must occur in connection with “an issue under consideration or review” in the proceeding’ or the anticipated action. [Citation.]” (*Bassi v. Bassi* (2024) 101 Cal.App.5th 1080, 1096 (*Bassi*)).

As interpreted by the Courts of Appeal, a statement or writing is ‘made “in connection with” ’ litigation under section 425.16(e)(2) – including anticipated litigation – ‘if it relates to the substantive issues in the litigation and is directed to persons having some interest in the litigation.’ [Citation.]” (*Bassi, supra*, 101 Cal.App.5th at p. 1096.)

Defendant, who is an attorney, argues Plaintiff is suing her for representing an opposing party in Plaintiff’s other case against Costco Wholesale Corporation (“Costco”). Defendant contends her representation of Costco is within the context of active litigation and therefore constitutes protected activity under the anti-SLAPP statute. In support, Defendant sets forth the following timeline of events:

The matter purportedly stems from Case Management Conference scheduled for December 4, 2025, in Department 13 at 2 p.m. before the Honorable Judge Daniel T. Nishigaya in regard to a case filed before Santa Clara Superior Court, Case No. 25CV473157 (“*Pirani v. Costco*”). Attorney Hammon appeared on behalf of defendant Costco.

Upon seeing that Attorney Hammon appeared on behalf of defendant Costco, Plaintiff objected to Attorney Hammon’s appearance. Plaintiff asserted that defendant Costco did not file an answer, had a judgment against it, and that Matheny Sears Linkert &

Jaime, LLP, did not represent Costco, despite receiving five separate letters from Mathey Sears Linkert & Jaime, LLP, in regard to the case of *Pirani v. Costco*.

Judge Nishigaya informed Plaintiff that defendant Costco did file an answer in *Pirani v. Costco*, did not have a judgment against it, and Matheny Sears Linkert & Jaime, LLP, did in fact represent defendant Costco, as displayed on the Santa Clara Docket.

On December 18, 2025, Attorney Hammon was served with the Summons and Complaint in the present case. (See Memo of P's & A's at pp. 2:13-3:6; Hammon Decl. at ¶¶ 2, 4-5, 8, 10, Exs. A, C; Jaime Decl. at ¶¶ 3-17, 10, Exs. B-G.)

As a preliminary matter, “[w]here a defendant moves to strike the entire complaint and fails to identify, with reasoned argument, specific claims for relief that are asserted to arise from protected activity, the defendant does not carry his or her first-step burden so long as the complaint presents at least one claim that does not arise from protected activity.” (*Park v. Nazari* (2023) 93 Cal.App.5th 1099, 1108.)

More recently, in *Pechkis v. Trustees of California State University* (2026) 119 Cal.App.5th 497 (*Pechkis*), the Third Appellate District affirmed the trial court’s denial of a special motion to strike two retaliation causes of action because the challenged claims were not shown to arise exclusively from protected conduct:

“Through an elemental analysis, the speech must form the basis of liability for the two challenged causes of action. [Citation.] **Defendant provides no analysis of the elements necessary to prove each cause of action, how allegations related to the speech supply the necessary elements of each cause of action, and whether there are other allegations supporting the cause of action that are not protected conduct. Defendant incorrectly assumes one drop of protected conduct fatally poisons both challenged causes of action.**” (*Pechkis, supra*, at p. 506, emphasis added.)

According to the notice of motion, Defendant moves to strike the entire complaint in connection with the special motion to strike. But, the moving papers fail to address whether Plaintiff’s claims for negligence and the unidentified intentional tort claim arise from protected activity. Instead, the motion considers only Plaintiff’s cause of action for professional negligence. (See Memo of P’s & A’s at p. 6:11-18.) Having failed to consider the other two claims, the motion fails on this basis alone.

Also, the complaint does not set forth *any* factual allegations in support of the causes of action for professional negligence, negligence, and intentional tort. The only facts alleged are contained in Plaintiff’s “Exemplary Damages Attachment” where Plaintiff says Defendant appeared at a CMC and identified herself as an attorney without possessing a bar license. There are no additional attachments included with the complaint establishing a factual basis for each cause of action. Without such facts, the court cannot properly determine if any cause of action arises from protected activity.

And, “[c]onsistent with the primary role of the complaint in identifying the claims at issue, courts have rejected efforts by moving parties to redefine the factual basis for a plaintiff’s claims as described in the complaint to manufacture a ground to argue that the plaintiff’s claims arise from protected conduct.” (*Bel Air Internet, supra*, 20 Cal.App.5th at pp. 936-937.)

For example, in *Central Valley Hospitalists v. Dignity Health* (2018) 19 Cal.App.5th 203 (*Central Valley*), the First Appellate District affirmed the denial of an anti-SLAPP motion by the operator of a hospital that claimed the plaintiff's causes of action were based on protected medical peer review activities. The complaint did not allege facts concerning peer review, and expressly disavowed basing any claims on peer review conduct. The appellate court rejected the defendant's attempt to construct a peer review claim through facts included in its own declarations. Citing a number of decisions that reached similar conclusions, the court explained that " '[t]he question is what is pled—not what is proven.' " (*Central Valley, supra*, 19 Cal.App.5th at p. 217, quoting *Comstock v. Aber* (2012) 212 Cal.App.4th 931, 942.)

Similarly, in *Medical Marijuana, Inc. v. ProjectCBD.com* (2016) 6 Cal.App.5th 602 (*Medical Marijuana*), the Fourth Appellate District, in affirming the denial of an anti-SLAPP motion, stated:

"It would be inappropriate for us to insert into a pleading claims for relief based on allegations of activities that plaintiffs simply have not identified, even if the parties suggest on appeal how plaintiffs might have intended to frame those claims or attempt to identify the specific conduct or assertions of statements alleged to be false on which plaintiffs intended to base such claims for relief. It is not our role to engage in what would amount to a redrafting of the first amended complaint in order to read that document as alleging conduct that supports a claim that has not in fact been specifically alleged, and then assess whether the pleading that we have essentially drafted could survive the anti-SLAPP motion directed at it." (*Medical Marijuana, supra*, 6 Cal.App.5th at p. 621.)

Here, like the aforementioned cases, Defendant is attempting to redefine the factual basis for the complaint alleged against her. The complaint, as currently pled, simply doesn't refer to Defendant's representation of Costco, matters related to the *Pirani v. Costco* case, or actions taken by Judge Nishigaya in that action. Nor is Plaintiff's passing reference to the CMC in her "Exemplary Damages Attachment" sufficient to trigger protected activity under the anti-SLAPP statute. (See *Hylton v. Frank E. Rogozienski, Inc.* (2009) 177 Cal.App.4th 1264, 1272 ["If the core-injury producing conduct upon which the plaintiff's claim is premised does not rest on protected speech or petitioning activity, collateral or incidental allusions to protected activity will not trigger application of the anti-SLAPP statute."]; see also *Baral v. Schnitt* (2016) 1 Cal.5th 376, 394 ["Allegations of protected activity that merely provide context, without supporting a claim for recovery, cannot be stricken under the anti-SLAPP statute."].) And, while Defendant may supplement her motion with declarations and affidavits, she is not permitted to repackage the complaint to construct a claim that arises from protected activity.

Based on the foregoing, the court finds Defendant did not meet her first-prong burden in establishing that each cause of action arises from protected activity. Therefore, the court does not need to consider whether Plaintiff can show a probability of success on the merits of her claims. (See *Nam v. Regents of University of California* (2016) 1 Cal.App.5th 1176, 1185 ["If defendant fails to meet its burden, we need not assess plaintiff's likelihood of prevailing on the merits."].)

Consequently, the special motion to strike the complaint is DENIED. (See *Shahbazian v. City of Rancho Palos Verdes* (2017) 17 Cal.App.5th 823, 830 ["If the moving party fails to

demonstrate that any of the challenged causes of action arise from protected activity, the court denies the motion.”].)

Request for Attorney’s Fees and Costs

Defendant’s request for attorney’s fees and costs is DENIED as she did not prevail on the merits of the special motion to strike.

Disposition

The special motion to strike the complaint is DENIED.

The request for attorney’s fees and costs is DENIED.

The court will prepare the order.

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